them were heavily skewed in favour of Ganpat and Tukaram, not only because they were officers of the state but also because they were specifically investigating a case involving Mathura. Mathura alleged rape immediately upon emerging from the police station. All of the surrounding circumstances indicated that this may have been an instance of passive submission, but certainly was not consent: '[M]ere passive or helpless surrender of the body and its resignation to the other's lust induced by threats or fear cannot be equated with the desire or will.'[2]

The high court convicted Ganpat of rape and Tukaram of 'outraging the modesty of a woman', and sentenced them to rigorous imprisonment for terms of five years and one year respectively. Although the court could have imposed sentences of twice that length on each of them, many other aspects of its decision were progressive and carefully considered. The court took account of the imbalance of power between the parties. It acknowledged that being in the unlawful custody of the police, Mathura was in an inherently difficult position. Finally, it served as a reminder that consent was a more sophisticated concept than the failure to resist, scream or protest.

Unfortunately, the high court's judgement would not stand for long. Ganpat and Tukaram appealed against their sentences. About two years after the high court judgement, in 1978, three judges of the Supreme Court made their decision in the appeal. The Supreme Court reverted to the sessions court's reasoning that the 'absence of injuries implies consent'.[3] Although the Supreme Court did not describe Mathura as a 'shocking liar' in those many words, it may as well have done so. According to the court, the fact that Mathura bore no injury marks indicated that what took place within the police station was a 'peaceful affair', and that Mathura's story was 'all false'.[4]

The Supreme Court also rejected the high court's reasoning that Mathura's case may have involved passive submission, but was not consent. The court observed that when Mathura was prevented from leaving the police station, she did not raise an alarm despite the presence of Gama, Ashok and Nunshi. She simply should not have 'meekly' followed Ganpat, allowing him to satisfy his 'lust in full'.[5] She could not have been 'so